

CCRB CASE CLOSING FORM

Investigator assigned: Bautista		Team: 4	CCRB#: 9700201	FADO: F.D.E
Date of incident: 09/17/97	Time of incident: 08:35 hours	Location of incident: E. 53 rd Street & Winthrop Street.	Pct. of occurrence: 067	Date SOL expires: 3/17/98
Date reported: 01/21/97	Time reported: 15:42 hours	To whom/where/how reported: CCRB, in person		
Complainant: § 87(2)(b)		Home address: § 87(2)(b)		
Victim(s): Same as above				
Witness(es):				
Subject officer(s) (include rank): PO John Chell PO Kevin Kenny		Shield: 22494 04113	Tax: 905942 901770	Command: 067 067
Witness officer(s) (include rank): PO Edward Gerry PO Adriene Rodriguez		11427 13496	889088 902060	067 067
Allegation(s) by letter:			Recommendation(s):	
A. PO Chell used excessive force when he grabbed § 87(2)(b) by the back of her neck in violation of Patrol Guide 104-01.			§ 87(2)(g)	
B. PO Chell used excessive force when he threw § 87(2)(b) against the gate in violation of Patrol Guide 104-01.			§ 87(2)(g)	
C. PO Chell was discourteous to § 87(2)(b) when he told her, "Shut up, you bitch," "Shut the fuck up" in violation of Patrol Guide 104-01.			§ 87(2)(g)	
D. PO Chell used excessive force when he pushed § 87(2)(b) into the patrol car in violation of Patrol Guide 104-01.			§ 87(2)(g)	
E. PO Kenny used excessive for when he threw § 87(2)(b) against a gate in violation of Patrol Guide 104-01.			§ 87(2)(g)	
F. PO Kenny used excessive force when he pushed § 87(2)(b) into the patrol car in violation of Patrol Guide 104-01.			§ 87(2)(g)	

Summary

On September 17, 1996 at approximately 8:30 A.M., PO Chell and PO Kenny pulled over a livery taxi in which § 87(2)(b) and another unknown passenger were riding to work. § 87(2)(b) was informed that the taxi will be held for a while and if she wants she could take another taxi. A verbal altercation occurred between PO Chell and § 87(2)(b) and she ended up getting arrested for § 87(2)(b).

Neither of the taxi driver or the other passenger was arrested.

Analysis

§ 87(2)(b) stated that she got out of the taxi and as she was fixing her clothes, a cup of coffee that she was holding spilled on her pants. § 87(2)(b) started wiping off her pants and said to herself this is ridiculous. PO Chell who was near her, asked her, "Are you talking to me?" At that moment, § 87(2)(b) PO Chell to stop harassing her and started to walk away. PO Chell grabbed her from the back of her neck and threw her up against a gate. § 87(2)(b) asked the officer what are you doing? What are you doing? PO Chell told her, "Shut up, you bitch. You just shut up." PO Chell called his partner for assistance and both officers pushed her against a gate. § 87(2)(b) also mentioned that she was resisting the officer's arrest because she wanted to know what she was being arrested for. § 87(2)(b) also claims that both officers pushed her inside the patrol car.

PO Chell stated that after he told § 87(2)(b) that the taxi will be retained for some time, § 87(2)(b) got out of the car cursing at them and continued screaming and yelling at them. PO Chell stated that § 87(2)(b) was facing him when he decided to place her under arrest. PO Chell admitted using physical force to apprehend § 87(2)(b) because she was resisting arrest and refused to be handcuffed. § 87(2)(b) backing up, and he was pushing forward and they fell onto a gate. PO Chell stated that he did not grab § 87(2)(b) by the neck and throw her against the gate; he leaned her against the gate to handcuff her. While handcuffing her, she was yelling and screaming. PO Chell denied cursing at § 87(2)(b). On the other hand, PO Chell stated that they physically put § 87(2)(b) the patrol car. § 87(2)(b) not want to get inside the car, and she would not put her feet inside. PO Chell had to go around the vehicle and pull her in. Once the door was closed, she tried to kick the windows.

PO Kenny stated that § 87(2)(b) got very upset when they told her that the car would be there for a while, she could either stay or leave. PO Kenny stated that § 87(2)(b) was cursing at them and she went crazy when PO Chell attempted to arrest her for disorderly conduct. § 87(2)(b) was swinging her arms, fighting PO Chell. PO Kenny stated that he assisted PO Chell by grabbing § 87(2)(b) arms and to try put the cuffs on her. PO Kenny stated that he did not hear his partner cursing at § 87(2)(b).

PO Chell stated that they called for back up and also for a car with a cage because § 87(2)(b) was out of control. PO Rodriguez and PO Gerry transported § 87(2)(b) to the station house. PO Rodriguez stated that due to § 87(2)(b) behavior, the arresting officers had to call for a cage

car. PO Rodriguez stated that when they arrived at the scene, § 87(2)(b) was already handcuffed and inside PO Chell's patrol car. PO Chell and PO Kenny took § 87(2)(b) out of their car and put her in PO Rodriguez's car, and during this process, § 87(2)(b) was kicking them, screaming and yelling at them. PO Rodriguez did not observe any officers using force against § 87(2)(b) or hear them cursing at § 87(2)(b). PO Gerry did not remember anything about this incident.

Five days after the incident, § 87(2)(b) went to see her doctor at the § 87(2)(b). § 87(2)(b) was treated for pain in the neck, lower and upper back, both arms and head. § 87(2)(b) had bruises on both arms, left breast and behind left ear.

§ 87(2)(g)

Investigator: Bautista

Date: 08/28/97

Supervisor: *Ben Davis*

Date: 9/2/97

Reviewed by: _____

Date: _____

Reviewed by: _____

Date: _____